

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 11-cv-00303-RBJ-MEH

ST. PAUL SOBER LIVING, LLC,
CHRIS EDRINGTON,
DONALD EDRINGTON,
ADAM TIPTON, and
ALEX COLINS,

Plaintiffs,

v.

GARFIELD COUNTY, BOARD OF COUNTY COMMISSIONERS, and
SPRING VALLEY SANITATION DISTRICT,

Defendants.

FINAL JUDGMENT

PURSUANT to and in accordance with Fed. R. Civ. P. 58(a) and the orders entered in this case, FINAL JUDGMENT is entered.

I. Pursuant to the oral ruling at the Jury Trial #[148] held before Judge R. Brooke Jackson on December 20, 2012, which order is incorporated by reference,

IT IS ORDERED that the Oral Motion to Dismiss the ADA claims and the Retaliation claims for Alex Collins and Adam Tipton are MOOT. Claim Two is DISMISSED. It is

FURTHER ORDERED that the motion as to Donald Edrington's FHA claim and the retaliation claim of St. Paul Sober Living is DENIED.

II. This matter was tried before a jury of seven, duly sworn, commencing December 18, 2012 and reaching a verdict December 21, 2012. Pursuant to the verdict

of the jury #[149-9] filed December 21, 2012, it is

ORDERED that the Plaintiffs proved by a preponderance of the evidence that the handicap of the residents of the sober house in Elk Springs, Garfield County, Colorado was a motivating factor for the Board of County Commissioners' application of the zoning code. It was further proved that:

- Plaintiff St. Paul Sober Living, LLC, did prove its retaliation claim by a preponderance of the evidence.
- Plaintiffs Chris Edrington and Donald Edrington did not prove their retaliation claim by a preponderance of the evidence.
- Defendant's discriminatory conduct proximately caused money damages to St. Paul Sober Living, LLC.
- Defendant's discriminatory conduct proximately did not cause money damages to Chris Edrington, Donald Edrington, Adam Tipton and Alex colins.
- The amount of money damage that was proximately caused by defendant's discrimination as to St. Paul Sober Living, LLC was \$400,000.00
- The amount of money damage that was proximately caused by defendant's discrimination as to Chris Edrington was \$1.00.
- The amount of money damage that was proximately caused by defendant's discrimination as to Donald Edrington was \$1.00.
- The amount of money damage that was proximately caused by defendant's discrimination as to Adam Tipton was \$1.00.
- The amount of money damage that was proximately caused by defendant's discrimination as to Alex Colins was \$1.00.

III. Pursuant to the oral ruling at the Jury Trial #[149] held before Judge R. Brooke Jackson on December 21, 2012, which order is incorporated by reference,

IT IS ORDERED that, subject to the submission of a written order the Board of County Commissioners must be and is now enjoined from enforcing its zoning code in a way that would require the sober living house to be removed.

ACCORDINGLY, it is hereby ORDERED that final judgment is entered for the Plaintiffs St. Paul Sober Living, LLC, Chris Edrington, Donald Edrington, Adam Tipton and Alex Colins and against Defendant Garfield County Board of County Commissioners.

DATED at Denver, Colorado, this 28th day of December, 2012.

FOR THE COURT:

JEFFREY P. COLWELL, CLERK

By: s/Edward P. Butler
Edward P. Butler
Deputy Clerk